day. The ECI says the redistribution was never implemented.

The law is clear about where authority lies. The CEC is first among equals. Section 18 of the 2023 Act says the commission's business should, as far as possible, be transacted unanimously; where members differ, the majority prevails, and even the allocation of business can be altered only unanimously. Former CEC O.P. Rawat says that cuts both ways. "Together, they [the ECs] constitute a majority of the commission. If they disagree with the Chief Election Commissioner, they can overrule him. It happened to me when I was Chief Election Commissioner," he says. But he faults both sides for writing to outside authorities before sitting down together to resolve their differences.

The ECI's first response, on September 23, was largely defensive: written observations are routine in a multi-member body, and every major decision had ultimately been unanimous. A second note, after the full commission met on September 26, said the Bihar order and the October 2025 and May 2026 schedules had all been approved by the three commissioners. Yet it also conceded ground. A committee headed by a senior deputy election commissioner, with an independent IIT or IIIT expert, will examine whether ECINet complies with election



"The two ECs are not powerless. Together, they constitute a majority of the commission. If they disagree with the CEC, they can overrule him"

—O.P. RAWAT
Former Chief Election Commissioner

law. Field officers are to be given the flexibility to exercise their statutory powers; new IT modules must be vetted by a committee of officers; agendas will be circulated in advance and minutes issued; and the commissioners' directions must be "meticulously complied with". Psephologist Yogendra Yadav, a petitioner against the SIR, calls it "an ultimate admission of guilt" and a "ceasefire agreement". "Now it's not just the CEC. All three election commissioners stand exposed," he says.

Crisis 5: Who selects the umpires

Beneath both disputes lies a structural suspicion. For seven decades, Parliament did not enact any law governing ECI appointments, leaving the executive to choose the commissioners. In March 2023, after questioning the appointment of Arun Goel as EC a day after he took voluntary retirement, a constitution bench in *Anoop Baranwal vs Union of India* ruled that, until Parliament legislated, appointments would be made by a committee comprising the prime minister, the leader of the Opposition and the Chief Justice of India.

SIR: ALL THAT YOU NEED TO KNOW

From the enumeration form to the final roll, a quick guide to the forms, notices and documents required

1. ENUMERATION

The Booth Level Officer (BLO) makes house-to-house visits and provides existing voters with the enumeration form

NAME EXISTS ON THE VOTER ROLL

Enumeration form

Fill in your details and information needed to link you to the previous SIR roll → **Submit it to the BLO or online through ECINet**

You can search the previous SIR roll using your EPIC number, name, constituency or permitted relative's details

NAME MISSING FROM THE ROLL

Form 6 + SIR declaration

Apply for inclusion → **Electoral Registration Officer (ERO) verifies**

No documents are required at this stage

2. DRAFT ROLL IS PUBLISHED

After enumeration, the ERO publishes the draft roll online. This is when voters should check their names and details and file claims and objections during the stipulated period

NAME MISSING Fill and submit Form 6 + SIR declaration, where applicable

WRONG DETAILS Fill and submit Form 8, seeking correction

OBJECTING TO SOMEONE'S INCLUSION Fill Form 7, stating grounds for objection or deletion. Person concerned gets an opportunity to respond

PTI

